

The Radio Frequency Identification Devices, (Exemption from Licensing Requirement) Rules, 2009

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The Radio Frequency Identification Devices, (Exemption from Licensing Requirement) Rules, 2009

UNION OF INDIA

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The Radio Frequency Identification Devices, (Exemption from Licensing Requirement) Rules, 2009

Rule

THE-RADIO-FREQUENCY-IDENTIFICATION-DEVICES-EXEMPTION-FROM-LICENSING-REQUIREMENT-RULES-2009 of 2009

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The Radio Frequency Identification Devices, (Exemption from Licensing Requirement) Rules, 2009

Published vide Notification No. G.S.R. 90(E), 10th February, 2009

Ministry of Communications and Information Technology

(Wireless Planning and Coordination Wing)

G.S.R. 90(E). - In exercise of the powers conferred by Sections 4 and 7 of the Indian Telegraph Act, 1885 (13 of 1885

) and Sections 4 and 10 of the Indian Wireless Telegraphy Act, 1933 (17 of 1933), the Central Government hereby

makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the use of very low power Radio Frequency devices or equipments including the Radio Frequency Identification Devices, (Exemption from Licensing Requirement) Rules, 2009.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Application.

- These rules shall be applicable in the 50-200 KHz frequency band.

3.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Indian Telegraph Act, 1885 (

13 of 1885

), and the Indian Wireless Telegraphy Act, 1933 (

17 of 1933

);

(b)

Words and expressions used in these rules and not defined, but defined in the Acts shall have the same meanings respectively assigned to them in those Acts.

4.

Use of very low power Radio Frequency devices or equipments including Radio Frequency Identification Devices, in the 50-200 KHz frequency band.

- Notwithstanding anything contained in any law for the time being in force, no licence shall be required by any person to establish, maintain, work possess or deal in any wireless equipment for the purpose of usage of very low power Radio Frequency devices, or equipments including Radio Frequency Identification Devices, in the 50-200 KHz frequency band, with Integral, Dedicated or External antenna (In case of external antenna, only loop coil antenna may be employed) on non-interference, non-protection and shared (non-exclusive) basis, with the maximum Radiated Power or Field Strength Limits as specified in the Table below, namely :-

Table

Technical characteristics of inductive applications using the following frequency bands

Frequency Band

Maximum Radiated Power or Field Strength Limits

50-59.750kHz

72 dB μ A/m or 123.5 dB μ V/m at 10 metres

59.750-60.250kHz

42dB μ A/m or 93.5 dB μ V/m at 10 metres

60.250-70kHz

69 dB μ A/m or 120.5 dB μ V/mat 10 metres

70-119kHz

42 dB μ A/m or 93.5 dB μ V/m at 10 metres

119-135kHz

66dB μ A/m or 117.5 dB μ V/m at 10 metres

135-140kHz

42 dB μ A/m or 93.5 dB μ V/m at 10 metres

140-148.5kHz

37.7 dB μ A/m or 89.2 dB μ V/m at 10 metres

148.5-200 kHz

30.0 dBμA/m or 81.5 dBμV/m at 10 metres

5.

Interference.

- The effect of unwanted energy due to one or a combination of emissions, radiations or induction upon reception in a radio communication system, manifested by any performance degradation, misinterpretation, or loss of information which could be extracted in the absence of such unwanted energy, where any person whom a licence has been issued under Section 4 of the Act, informs that his licensed system is getting harmful interference from any other radio communication system exempted under these rules, the user of such unlicensed wireless equipment shall take necessary steps to avoid interference by relocating the equipment, reducing the power, using special type of antennae including discontinuation of such wireless use, if required:

Provided that, before such discontinuation, a reasonable opportunity to explain the circumstances shall be offered to such unlicensed user of wireless equipment.

6.

Equipments.

(1)

These very low power Radio Frequency wireless devices or equipments or Radio Frequency Identification devices shall be type approved and designed and constructed in such a manner so that the bandwidth of emission and other parameters shall conform to the limits specified in the Table referred to in rule 4 above.

(2)

The application for obtaining equipment type approval shall be made to the Central Government in such application format which shall be available on website;

7.

Conditions.

- These rules,-

(i)

do not in any way, affects the licensing rights or procedures of existing and planned wireless operations, in this frequency band;

(ii)

are not applicable, wherever specific service licence is required from the Central Government.

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